THE STATE

versus

TAMISAYI BRIAN MAPAKO

HIGH COURT OF ZIMBABWE
MUTEVEDZI J
BULAWAYO, 17 November 2025

Criminal Review

MUTEVEDZI J: This matter was placed before me on an automatic review in term of section 57 of the Magistrate Court Act [*Chapter 7:10*] ("the MCA").

[1] The accused person was arraigned before the court of a Provincial Magistrate at Bulawayo. He was charged with the crime of Criminal Insult as defined in section 95(1)(a) of the Criminal Law (Codification and Reform) Act [*Chapter 9:23*] ("the CODE"). The allegations were that during the period extending from 16 May 2024 to 28 June 2024 and at Fidelity House in Bulawayo the accused unlawfully and intentionally impaired the dignity of Casey Jade by accosting her and writing several letters to her demanding sexual intercourse with her. He also persistently requested the woman to participate in what he called "a threesome romp." In reality such activity entails sexual intercourse involving multiple people at the same time. Despite several warnings to desist from such conduct, the accused was unrelenting. He wrote even more terrifying letters in which he talked about "a holocaust" which was about to happen and "sacrifices" which were supposed to be made. The sacrifices, so he went on, included having his so-called threesome sex romp with one young white woman and another young black woman. It was at that point that the complainant really panicked decided to report the matter to the police.

[2] On his initial appearance in court, the magistrate remanded him in custody and directed that he be examined by two doctors in terms section 28 (2) of the Mental Health Act [*Chapter 12:15*] ("the MHA"). That section of the MHA is couched as follows:

> **28 Procedure where person found mentally disordered or intellectually handicapped during preparatory examination or trial**

(2) If, at any time during a preparatory examination against, or trial of, any person—

(a) it appears to the judge or magistrate presiding at the preparatory examination or trial that the person is mentally disordered or intellectually handicapped; or

(b) a report in terms of the proviso to subsection (1) of section twenty-seven is received by the judge or magistrate presiding at the preparatory examination or trial that the person appears to be mentally disordered or intellectually handicapped;

the judge or magistrate shall inquire into that person's mental state.

(3) For the purposes of inquiring into a person's mental state in terms of subsection (2), the judge or magistrate may—

(a) adjourn the preparatory examination or trial for such period, not exceeding fourteen days, as he thinks fit and remand the person to the custody of the officer in charge of a prison; and

(b) direct two medical practitioners to examine the person and inquire into his mental state and, after such examination, the medical practitioners shall certify in writing in the prescribed form as to the person's mental state:

Provided that if only one medical practitioner is available, the judge or magistrate may direct a psychiatric nurse practitioner to examine the person concerned, inquire into his mental state and provide the second certificate required by this paragraph."

[3] In the case of *S* v *Mlanzi* HB80-25 this court had opportunity to interpret s 28(2) of the MHA when it remarked that: -

"S 28(2) allows a judicial officer to conduct **an inquiry** into the mental state of the accused. That inquiry is carried out by adjourning the trial for a period not in excess of 14 days during which the accused is remanded into the custody of the officer in charge of a prison. Thereafter, the court makes an order directing that two medical practitioners (one of whom may be a psychiatric nurse) must examine and inquire into the accused's mental state and set out their findings in writing in the prescribed form. If and when the medical practitioners have certified that the accused is mentally disordered or intellectually handicapped their reports must specifically make the recommendation on whether the accused **is or is not fit to stand trial."** (Bolding is my emphasis.)

[4] In the instant case, after the magistrate's directive as indicated in paragraph (2), the two medical practitioners certified in their reports that the accused was at the time he appeared in court still mentally disordered. They specifically advised that he was not fit to stand trial. Correctly so in my view, on 15 July 2024, the magistrate then committed the accused to Mlondolozi Psychiatric Unit for treatment. Fifteen months later, the accused was brought back to court. He was deemed to have sufficiently recovered to understand the proceedings intended against him. The Prosecutor General had also authorized his prosecution. At the commencement of his trial, the accused pleaded not guilty to the charge. Although he admitted sending the letters to the complainant and making the strange demands already referred to, he argued that he had continued writing those letters and pestering the complainant because he was "love-stricken." He also said he did not know that his conduct was wrongful. The following

was the exchange that occurred during the accused's cross examination by the prosecutor: -

> Q. Is it your evidence that you were not aware your conduct was criminal in nature?
> A. I agree.
> Q. I put it to you that ignorance of the law is no defence?
> A. Ignorance depends with the circumstances.
> Q. I put it to you were aware of what you were reprimanded however you kept on sending letters
> A. The manner I was reprimanded caused me heartbreak. I concluded that one of complainant's male colleagues was seeing her that is why I did not stop going to see her or sending her letters

[5] The reference by the prosecutor to that old saying that 'ignorance of the law is not a defence' is what must have led the trial magistrate astray regarding the accused's defence despite the clear signs that the accused was alleging that something was possibly wrong with his mind at the time he committed the crime. Analysing the evidence before him, the trial magistrate then stated as follows: -

> ANALYSIS OF EVIDENCE
>
> "As alluded above, accused is not denying having conducted himself in the manner which forms the basis of this offence. He admitted having sent complainant the offensive letters, having gone to her workplace. The questions left for this court to answer are whether his defence of ignorance of the law is valid, and whether accused possessed the *mens rea* to commit this offence."

[6] The above was clearly a misdiagnosis of the defence which the accused was raising. Far from being mistake or ignorance of the law, the accused was simply pleading that he was mentally disordered or intellectually handicapped at the time that he committed the crime. In an endeavour to explain the crime of 'criminal insult, the trial magistrate quoted an ancient author called Melius de Villiers, in his 1899 book titled *The Roman and Roman Dutch Law of Injuries*. Thereafter, he reproduced section 236 of the CODE which provides for the defence of mistake or ignorance of the law. He spiced that up with a further reference to section 51 of the Constitution of Zimbabwe which provides for the right to human dignity. Unfortunately, all that effort was never linked to the facts of the case at hand. In the end, it was just an essay that the trial magistrate set for himself, undertook, marked his own work and archived it because immediately after, he made a volte-face and referred to section 227 of the CODE. It is the provision which deals with the defence of Mental disorder at the time of commission of the crime. As already stated, it was the defence which the accused was raising and which the trial court ought to have concentrated on right from the onset. But besides citing the relevant

section, the magistrate said nothing more about that defence. Instead he went straight into the disposition of the case and concluded that: -

> **DISPOSITION**
> Having made the above factual and legal findings accused person cannot escape conviction. This court is convinced beyond reasonable doubt that the accused committed the offence. However, due to mental disorder, the *actus reus,* is present, but he lacked the requisite *mens rea w*hen he committed this offence. The affidavit from the psychiatrist is very clear on that aspect.
> Even the content of the letters which are before the court exhibits "2" and "3" are clear on the aspect that accused is delusional. He imagines things. It is no wonder he has been treated a record 12 times at Ingutsheni Hospital. The mental illness he suffers from exhibits symptoms such as hallucinations, delusions, disorganised thinking and reduced innovations amongst other symptoms.
> The psychiatric affidavit goes on to mention that the accused is "dangerous to society". He committed four (4) crimes in the past. Accordingly, this court returns a **special verdict** of not guilty due to insanity. **Accused person is hereby acquitted**."

[7] The above conclusion betrayed a serious misunderstanding of the defence of mental disorder at the time of commission of the crime by the trial court. Whilst the substantive defence is in terms of section 227 of the CODE, the procedural aspects are also stated under section 29 of the MHA which states that: -

> "**29 Procedure where person charged is found mentally disordered or intellectually handicapped at time of committing offence**
> (2) If a judge or magistrate presiding over a criminal trial is satisfied from evidence, including medical evidence, given at the trial that the accused person did the act constituting the offence charged or any other offence of which he may be convicted on the charge, but that when he did the act he was mentally disordered or intellectually handicapped so as to have a complete defence in terms of section 248 of the Criminal Law Code, the judge or magistrate shall return a special verdict to the effect that the accused person is not guilty because of insanity" (Underlining is my emphasis).

[8] When an accused raises the above defence, he will be arguing that at the time he/she allegedly committed the offence, he/she was suffering from a mental disease. Put differently, the accused would be telling the court that he is fit to stand trial and understands the criminal proceedings before the court but that as at the time the crime was committed he was mentally disordered as to be incapable of understanding the nature and quality of his actions. In other words, the accused will be saying that he has fully recovered from that illness and is able to undergo trial. If he was mentally ill at the material time and has still not recovered from that problem, the procedure under section 28(2) would cover him/her. Section 29(2) is applied where the accused has sufficiently recovered from his or her mental illness and has become fit to stand trial. His only defence is that he was mentally disordered at the time of commission of the offence.

[9] From the accused's explanation of events, the admitted fact that he had been in and out of hospital with mental issues on about twelve occasions, it must have dawned on the magistrate that the court may have been trying a man who barely understood what was going on. The affidavit that supported the accused's prosecution had only been deposed to in February 2025. The accused's prosecution was several months after the diagnosis, in October 2025. The requirement in section 28(2) that a court may adjourn the trial for a period not in excess of fourteen days is not an idle one. It is intended that when the medical report is submitted, the court must have regard to it within that two weeks window. In this case, the accused is a person who frequently relapsed into mental illness if and when he defaulted taking his medication as stated by the psychiatrist. It is the reason why I suggest that given his conduct during the trial, it is possible that the accused was not in his right senses.

[10] Interestingly, it appears the prosecutor was also in no doubt that the accused was mentally disordered at the time that he omitted the crime. If prosecution entertains such a view after an accused has recovered from his illness, there may be no need to drag such a person before the courts except where the state wishes the court to commit the person for further treatment for the protection of the public. Where a prosecutor is of agreement that the person was mentally disordered at the time of the commission of the crime, the right course is for the state and the accused to proceed by way of a statement of agreed facts. It is unnecessary to seek to prove by calling witnesses, issues that are not contentious. In this case, it is the state which detailed the many occasions when the accused was admitted into hospital for treatment for mental disorders. By acquiescence, it was agreeing that he was mentally ill at the relevant time. See the case of *S* v *Peter Dube* HB194-25 for the general procedure to follow when dealing with the defence of mental disorder at the material time.

[11] To add to the above, the issues relating to the accused's mental illness were not thoroughly interrogated. In fact, they were forgotten and only dealt with as an afterthought when after the accused had closed his remarkably brief defence case when the prosecutor stood and said to the court: -

> "There was an oversight. State would like to tender Affidavit from psychiatrist. This affidavit will assist the court to reach verdict."

The court obliged and said: -

> "Psychiatric Affidavit accepted into evidence and marked exhibit 4."

[12] The accused was never asked any questions about the psychiatrist's report. He was not asked to say anything about it. Instead, the prosecutor went on to tender the victim impact statement shortly thereafter. It was unnecessary to do so at that stage, if it was at all. A victim impact statement is not necessary to prove the guilt or innocence of an accused person. Its purpose is for the assessment of an appropriate sentence. Ordinarily therefore, it can only be produced for that purpose.

[13] But even more worrisome is the trial magistrate's failure to comprehend what is meant by the special verdict of not guilty by reason of insanity. I have already said above that the victim impact statement is only necessary where a court intends to sentence a convicted person. I am forced to think that the trial court indeed thought that it had convicted the accused. My suspicion is fortified by the fact that after returning the special verdict, the trial magistrate proceeded to carry out an elaborate pre-sentencing inquiry. It stated that: -

> "Convicted person, now that you had been found guilty. This court will hold a pre-sentencing inquiry. The purpose of the inquiry is two pronged. The first one is to enable this court to gather as much information as possible, to consider when assessing the appropriate sentence for you. The second purpose of this inquiry is to give you an opportunity to tell this court about your personal circumstances, those you think if this court hear about them; will consider and be lenient with you during sentencing. You get the opportunity to persuade this court to be lenient with you during sentencing. You are also at liberty to suggest a sentence you think will meet the justice of this offence. However, you will have a motive why you think that sentence is the most appropriate one. You can also tell this court why you committed this offence."

[14] Needless to emphasize, the special verdict of not guilty by reason of insanity means exactly that. The accused is **found not guilty**. He or she cannot be sentenced to any punishment. Neither a presentencing inquiry nor the submission of a victim impact statement is necessary. The trial magistrate in this case completely missed that point.

[15] I must add that in this case, the verdict that the accused was not guilty because of insanity cannot be debated. It is how it was arrived at that caused my strife. The trial was conducted without an understanding of the necessary procedures typified by statements such as that: - *"This court is convinced beyond reasonable doubt that the accused committed the offence,'* which are however blown away in the same breadth

when the court said the accused lacked the requisite *mens rea* when he committed the offence. In the end, the court said it was returning a verdict of not guilty due to insanity with no clear reasons as how it arrived at such decision. In addition, it went further and beyond the special verdict to say that it found the accused not guilty and acquitted. Where an accused is found not guilty and is acquitted, there cannot be any consequences attendant upon that acquittal. It comes with no strings attached. The accused is entitled to be released unconditionally. That is different from the special verdict which does not accord the accused such benefits. Because it is a special verdict, the court retains authority to commit an accused for treatment where he is shown to be a danger to the public. The conflation of the normal verdict of not guilty and acquitted with the special verdict of not guilty because of insanity amplifies the misconceptions which the trail court laboured under.

[16] A reading of the record of proceedings shows that the trial court admitted an affidavit deposed to by one Dr. Elena Poskotchinova, a psychiatrist stationed at Ingutsheni Central Hospital, Bulawayo. It was marked as Exhibit 4. In paragraphs 4 to 6 of the same, the Psychiatrist stated: -

> "4. When examined by me, the accused who is 56 years old appeared to be psychotic with delusion of grandiose and persecution, believes that he is famous politician and case was fabricated due to political issue, "I only wanted to use sexual energy for political issue" Lack of insight. During examination was abnormally elated with pressure of speech and loose though association. Lack of insight.
> <u>According Ingutsheni file (Hospital no. 00196)</u>
> Has been treated several times at (12 times) at Ingutsheni hospital since 1999, last time in 2018 with diagnosis of Schizophrenia. He also detained and treated at Mlondlozi in 1997 due to crim of MDP, Assault 2001 and MDP in 2018. He got special verdict in 2018, released by Tribunal Board in 2023. Defaulted treatment and relapsed.
> According to staff report:
> Pacing up and down, deluded, abnormal elation.
> 5.<u>In my opinion:-</u> there is a reasonable possibility that at the time of the alleged crime the accused was suffering from mental disorder **Chronic Schizophrenia**. He was mentally disturbed to such an extent that he should not be held legally responsible for his action. He is dangerous to society (4 crime in past) and needs special verdict to return,
> 6.He is **<u>fit</u>** to stand trial."

[17] Undoubtedly, the accused was suffering from a mental disorder at the time of the commission of the offence. He defaulted treatment in 2023 and must have relapsed. The offence was committed soon after that relapse. There can be no other explanation besides that the accused may have been suffering from a mental affliction at the time

that he committed the crime. It is for that reason that I said ultimately, the verdict of not guilty by reason of insanity was correct. Vitiating these proceedings for the shortcomings highlighted will not serve any practical purpose because the same conclusion is likely to be arrived at.

[18] In the end I cannot do anything other than to withhold my certificate as I hereby do.

MUTEVEDZI J…….